

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANATOLIY KATS,

Petitioner

VS.

OLENA KATS,

Respondent

) Case Number: FDI-18-790475

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anatoliy Kats (Husband) and Respondent Olena Kats (Wife). The parties married on 10/5/2009 and they agree their date of separation is 5/1/2017, for a marriage of 7 years and 7 months.
- 2) On 7/13/2020, a Judgment was entered pursuant to an agreement of the parties. The Judgment provides in pertinent part that:
 - a. The parties shall retain the services of Moon Schwartz and Madden (MSM) to prepare QDRO's for any community property interest in "retirements" including Dignity 403(b), Sutter 403(b), and Sutter 401(k) with each party equally responsible for the payment and services provided.
 - b. Husband shall retain "the Roth IRA" in his name as his sole and separate property.
- 3) On 9/24/25, Wife filed a Request for Order. Wife states that after finally agreeing to cooperate with hiring Moon Schwartz and Madden (MSM) to divide their retirement accounts, MSM discovered transfers of funds into Husband's Sutter 403(b) and 401(k) retirement accounts on

1 12/31/2016. Wife contends the transfers are community funds, while Husband contends they are
2 separate funds. Wife attached a communication from MSM in which MSM stated it needs a
3 court's decision on the character of the "rollovers into Sutter 401(k) and 403(b)... to complete
4 those calculations and QDROs." Wife asks the Court to divide the retirement and investment
5 accounts, award sanctions for Husband's delay for hiring MSM and for concealing community
6 property transfers, and an award of interest and equitable adjustment for five years of delay.

7 4) On 11/3/25, Husband filed a Responsive Declaration denying allegations of concealment, delay,
8 and non-compliance with the terms of the Judgment. Husband states he initiated the QDRO
9 process on 4/1/2024 and asserts that the transfer of funds on 12/31/2016 was an administrative
10 rollover/transfer that occurred prior to Judgment. Husband requests the Court deny the Wife's
11 9/24/25 Request for Order in its entirety and impose sanctions against Wife under Family Code
12 section 271.

13 5) On 11/5/25, Husband filed an "Executive Summary for Judicial Review of Petitioner's
14 Responsive Declaration."

15 6) On 11/14/25, Wife filed a declaration entitled "Responsive Declaration" that the Court considers
16 a Reply Declaration wherein she reiterates her position.

17 7) At the prior 11/20/2025 hearing, per the Findings and Order After Hearing filed 12/5/2025, the
18 Court made the following relevant orders:

19 a. A future hearing date was set for 1/13/2026 on the issue of the retirement accounts. The
20 Court ordered Husband no later than 12/30/2025 to file and serve a declaration attaching
21 quarterly statements for all accounts from which money was transferred into the Sutter
22 403(b) and 401(k) accounts from the date of marriage (10/5/2009) through the date of
23 separation (5/1/2017).

24 b. The Court reserved jurisdiction over both parties' requests for sanctions.

25 8) On 12/12/2025, Wife filed a Request for Clarification of Findings and Order After Hearing. Wife
26 requests that the Court order Husband to provide all quarterly statements from all accounts to
27 which outgoing transfers were made from the Sutter 403(b) and Sutter 401(k) accounts.

28 9) On 12/24/2025, Husband filed a Declaration wherein he states:
29

- a. He has reviewed the complete financial history of the Lincoln Financial retirement accounts from date of marriage through “the date of the administrative transfer to Fidelity (December 31, 2016) and these quarterly statements confirm there were zero employee or employer contributions made to these accounts during the entire marital period.
- b. The Accounts were established prior to marriage and funded entirely with premarital earnings.
- c. The total balance transferred to Fidelity on 12/31/2016 (\$159,313.45) represents Husband’s separate property consisting of pre-marital balance plus passive market growth.

10) On 1/5/2025, Wife filed a Reply Declaration. Wife requests an independent forensic accounting review the retirement and investment accounts at issue, with Husband bearing 100% of the costs. Wife asks the Court to authorize MSM to directly obtain certified statements and records from any and all plan administrators, custodians, or financial institutions for any retirement, investment, or related accounts held in Husband’s name, or from which funds were transferred, rolled over, or otherwise moved, for the period from the opening of each account through the present, without further authorization from Husband. In the alternative, Wife asks the Court to order Husband to obtain and produced certified statements directly from the relevant plan administrators for all such accounts and periods.

11) On 1/7/2026, Husband filed a Supplemental Declaration. Husband asks the Court to deny all relief requested in Wife’s Reply Declaration.

12) At the prior 1/13/2026 hearing, per the Findings and Order After Hearing filed 1/20/2026, the Court made the following relevant orders:

- a. No later than 1/16/2026, Husband shall forward to Moon Schwartz and Madden (MSM) a true and correct electronic copy of his Declaration filed 12/24/2025 (including all attachments) and his Supplemental Declaration filed 1/7/2025 (including all attachments). Wife shall be CC’d on that communication with MSM. Husband shall ensure Wife receives a copy of all the documents he sends to MSM.
- b. The Court orders the parties to have MSM review the documents attached to Husband’s Declaration filed 12/24/2025 and his Supplemental Declaration filed 1/7/2025 and

determine whether there are any additional documents they need to complete a tracing and form an opinion regarding Husband's claims that all funds rolled over into the community property retirement accounts from the Lincoln Financial accounts in December 2016 are entirely Husband's separate property. Husband shall email (or provide a Dropbox or similar link) to MSM any additional documents requested (with a CC to Wife) within 14 days of receiving a list of additionally needed documents from MSM.

c. Once MSM is satisfied that it has all of the documents it needs or that can be reasonably obtained, the Court orders the parties to have MSM review the documents and provide a written opinion regarding Husband's claim that all funds transferred into the community property retirement accounts from the Lincoln Financial accounts are his separate property.

d. The parties shall share equally the cost for MSM to complete the work described above.

e. Once MSM has produced an opinion on this issue, the parties are ordered to meet and confer to determine whether they intend to accept the opinion and have MSM complete the QDROs for the remaining accounts or whether they intend to contest the opinion.

f. A review hearing is set for Thursday, 3/26/2026 at 9:00 AM in Dept. 404. In the event the parties do not accept MSM's opinion, the following issues will be heard at the next hearing date: (a) review any opinion by MSM regarding the character of any rollovers from the Lincoln Financial accounts into the community property retirement accounts and (b) adjudicate any remaining dispute between the parties regarding this issue.

g. All other requests set forth in Wife's 1/5/2025 Reply Declaration were denied.

13) On 3/13/2026, Husband filed a Declaration to which he attached a report by MSM dated 1/29/2026 which includes findings regarding the community and separate property shares contained in Husband's Sutter Health 403(b) and 401(k) and Dignity Health 403(b). Husband asks the Court to adopt MSM's findings and order the parties to immediately cooperate with MSM for the preparation of QDROs.

14) On 3/13/2026, Wife filed a Declaration. Wife states that: MSM issued two materially different reports within 24 hours, reducing the community component of the Sutter Health 403(b) by

1 approximately \$44,000 without adequate explanation, the report acknowledges rollover
2 mismatches and relies on figures labeled “assumed” rather than verified tracing, the report does
3 not reconcile administrator-produced Fidelity records, and the report contains two math errors
4 (one in the amount of \$4.90 and another in the amount of \$667.43). Wife states that these issues
5 undermine confidence in MSM’s analysis. Wife also states that she subpoenaed records from
6 Fidelity and provided them to MSM but it is unknown whether MSM relied on those records.
7 Wife further notes that MSM wrote to both parties stating, “At this time we recommend a
8 forensic CPA as we are unable to provide further analysis.” Wife asks the Court to:

- 9 a. Decline to adopt the MSM report;
- 10 b. Direct MSM to provide a written supplemental reconciliation confirming that all
11 reasonably obtainable documentation necessary to complete tracing has been obtained
12 and reviewed;
- 13 c. Require reconciliation of the rollover discrepancies against the Fidelity records;
- 14 d. Confirm that the separation-date allocation percentages are supported by a complete and
15 internally consistent tracing analysis;
- 16 e. If MSM is unable to provide such reconciliation, appoint a neutral forensic CPA to
17 perform a complete tracing of the Lincoln (CPMC), Sutter Health 403(b) and 401(k),
18 Fidelity, and Dignity Health retirement accounts; and
- 19 f. Direct the parties, or the relevant plan administrators, to produce updated retirement
20 account statements through the most recent available date so that separation-date
21 allocation percentages may be accurately applied to current balances and each party may
22 receive the full community property share of retirement benefits.

23 15) Following the prior 3/26/2026 hearing, the Court issued a Findings and Order After Hearing
24 (filed 4/17/2026) which ordered the following:

- 25 a. Because Wife is contesting MSM’s report, this hearing is continued to Thursday,
26 7/16/2026 at 9:00 AM in Dept. 404 to provide time to Wife to hire an independent
27 forensic accountant if she so chooses to review the necessary documents and comment on
28 MSM’s report final report. Wife shall be 100% responsible for the fees of her
29 independent forensic accountant subject to later reallocation.

- 1 b. No later than 5/1/2026, Wife may provide Husband a list of documents that she has not
2 yet been provided with to date, and Husband shall use his best efforts to provide the
3 requested documents to Wife within 10 days of Wife's request. Husband is not required
4 to provide to Wife any documents he has previously already given to Wife.
- 5 c. If Wife wishes to subpoena documents directly from the financial institutions, she may do
6 so.
- 7 d. At least 20 calendar days prior to the next hearing date, Wife shall provide Husband a
8 copy of her expert's report, if any.
- 9 e. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
10 declarations explaining which report the Court should adopt and why, and whether the
11 Court should reallocate the cost of Wife's forensic accountant.
- 12 f. At least 10 calendar days prior to the next hearing date, both parties shall also file and
13 serve Income and Expense Declarations.

14 16) On 5/1/2026, attorney Irina Aerov filed a Noticed of Limited Scope Representation stating that
15 she will represent Wife at the 7/16/2026 and for any continuance of that hearing. Ms. Aerov is
16 also representing Wife with respect to the issue of discovery.

17 17) On 7/6/2026, Husband filed a declaration stating that Wife failed to file an expert report and that
18 Wife should be precluded from introducing any new expert testimony of forensic accountant.
19 Husband also asks the Court to deny any request by Wife to reallocate any fees for Wife's
20 forensic accountant. Husband asks the Court to adopt Moon Schwartz and Madden's report.
21 However, Husband also asks that the Court stay the preparation and entry of any Qualified
22 Domestic Relations Orders regarding Wife's community share of retirement accounts "pending
23 the adjudication of any potential omitted community funds used to acquire foreign assets."
24 Husband states he believes Wife acquired a multi-property real estate portfolio in Kyiv and
25 Ivano-Frankivsk between 2021 and 2024 (following marriage) and he wants to conduct discovery
26 to determine whether Wife used community funds to acquire that real estate. Husband further
27 states that Wife served a formal Demand for Production on 6/18/2026 which is "currently
28 pending."
29

1 18) On 7/6/2026, Wife filed a declaration asking the Court to continue the 7/16/2026 hearing to date
2 in late September 2026 or early October 2026. Wife states she was unable to find a forensic
3 accountant willing to work with her as a self-represented litigant and she had to retain legal
4 counsel to assist her. Wife states her attorney contacted several forensic accountants, but only
5 one, Jeff Stegner, was available to review the documents. Wife states Mr. Stegner is currently
6 reviewing he records and is working on identifying what additional documents Husband “is
7 required to produce or what documents must otherwise be obtained through subpoenas.”

8 19) On 7/7/2026, Husband filed a Supplemental Declaration stating he objects to Wife’s request for
9 continuance. Husband reiterates his requests set forth in his 7/6/2026 declaration, including his
10 request to “stay the execution and distribution of any Qualified Domestic Relations Orders
11 (QDROs) pending the adjudication of Respondent’s omitted foreign assets, as more fully set forth
12 in Petitioner’s July 6, 2026 Declaration.”

13 **B. Findings and Order**

- 14 1) The Court finds good cause to grant Wife’s request for a continuance of this hearing to **Tuesday,**
15 **10/13/2026 at 9:00 AM in Dept. 404** to permit her expert additional time to conduct his analysis.
- 16 2) Wife shall serve whatever subpoenas she determines needs to be served to obtain whatever
17 documents her expert believes needs to be obtained sufficiently far in advance of the next hearing
18 date to provide the third parties with sufficient time to produce the requested documents and to
19 provide time to her expert to review the documents and produce a report.
- 20 3) At least 20 calendar days prior to the next hearing date, Wife shall provide Husband a copy of her
21 expert’s report, if any.
- 22 4) At least 10 calendar days prior to the next hearing date, both parties shall file and serve
23 declarations explaining which report the Court should adopt and why, and whether the Court
24 should reallocate the cost of Wife’s forensic accountant. Wife’s declaration shall also address
25 Husband’s contentions regarding whether she used community funds to acquire foreign real
26 estate, and whether the execution of any QDROs should be delayed for Husband to conduct
27 discovery regarding this issue.
- 28 5) At least 10 calendar days prior to the next hearing date, both parties shall also file and serve
29 Income and Expense Declarations.

6) The Court will prepare the Findings and Order After Hearing.